

LINE 10	24CV440175	Cruz v. Wellnessmart M.D. (Class Action / PAGA)	Hearing: Motion For Final Approval is GRANTED Click on line 10 for tentative ruling
LINE 11	24CV450946	Norma Barragan vs Quantum Financial Group, Inc. et al (Class Action)	Motion: Preliminary Approval is GRANTED Click on line 11 for tentative ruling
LINE 12	19CV346694	Moncada v. AJ's Restaurant & Bar, et al. (Class Action)	Hearing: Motion to Dismiss is GRANTED Click on line 12 for tentative ruling
LINE 13	23CV427840	Johnson v. Eureka Restaurant Group, LLC (PAGA)	Hearing: Petition for Coordination

Calendar Line 1

Case Name: *Sedano v. Jalimex Food Corporation, et al.*
Case No.: 21CV386681

This is a putative class and Private Attorneys General Act (“PAGA”) action. Plaintiff Luis Sedano alleges defendant Jalimex Food Corporation and Jalimex (collectively, “Defendants”) committed various wage and hour violations.

Before the Court is Plaintiff’s motion for preliminary approval of settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

I. BACKGROUND

According to the allegations of the operative first amended complaint (“FAC”), Plaintiff is a former employee of Defendants who was employed as a delivery driver and worked for Defendant in a non-exempt position in San Jose. (FAC, ¶ 7.) Defendants failed to: provide compliant meal and rest periods or compensation in lieu thereof; pay minimum and regular wages for all hours worked; pay all overtime wages; maintain accurate records; provide accurate itemized wage statements; and timely pay all wages during employment and upon separation of employment. (FAC, ¶¶ 4, 29-45.)

Plaintiff initiated this action on September 14, 2021, with the filing of the Complaint and on February 18, 2025, he filed the operative FAC, which asserts the following causes of action: (1) failure to provide meal periods; (2) failure to provide rest periods; (3) failure to pay minimum and regular wages; (4) failure to pay all overtime wages; (5) failure to provide accurate itemized wage statements; (6) failure to timely pay all wages due upon separation of employment; (7) violation of Business & Professions Code § 17200, *et seq.*; (8) wrongful termination in violation of public policy; (9) retaliation; and (10) PAGA penalties.¹

Plaintiff now seeks an order: preliminarily approving the class action and PAGA settlement agreement (the “Settlement”); conditionally certifying the class for settlement purposes; approving and directing distribution of the notice of class action settlement; appointing the class representative, class counsel, and the settlement administrator; and scheduling a final approval hearing.

II. LEGAL STANDARDS FOR SETTLEMENT APPROVAL

A. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

¹ The eighth and ninth causes of action are asserted on an individual basis.